STATE
versus
CONSIDER MANDAVA

HIGH COURT OF ZIMBABWE
MAWADZE DJP & MUREMBA J
HARARE; 16 October 2025

Review Judgment

MUREMBA J:

1. This matter came before me on automatic review following the conviction of the offender on four counts arising from his own pleas of guilty. The charges were as follows:

   - Count 1: Contravention of Section 6(1)(a) of the Road Traffic Act [*Chapter 13:11*] – Driving without a valid driver's licence.
   - Count 2: Contravention of Section 72(1) of the Road Traffic Act [*Chapter 13:11*], as read with the Road Traffic Act Amendment No. 3/2000 – Failing to comply with lawful instructions given by a police officer.
   - Count 3: Contravention of Section 53(2) of the Road Traffic Act [*Chapter 13:11*] – Reckless driving.
   - Count 4: Contravention of Section 180(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] - Deliberately supplying false information to a public authority.

2. The facts of the matter are as follows. On 22 August 2025, the offender, Consider Mandava, drove a Toyota Hiace public service vehicle without a valid driver's licence. He stopped at a dangerous location to load and offload passengers, prompting Sergeant Madzorera to arrest him and instruct him to proceed to Mbare Traffic. The offender defied the instruction and, while fleeing, drove through a red traffic light at Nazareth intersection, colliding with a Ford Ranger that had the right of way. He was apprehended with the assistance of other motorists. During arrest and processing, the offender deliberately provided false identity details, claiming to be Munyaradzi Gatsi. Subsequent investigations confirmed his true identity as Consider Mandava.

3. Upon review, I found no fault with the convictions themselves, which were properly entered following the offender's voluntary pleas of guilty. I also found no fault with the sentences to pay fines imposed in counts 2 and 4 and the custodial sentences imposed in counts 1 and 3. However, the record reveals several procedural and legal anomalies that warrant attention and correction.

4. Firstly, with respect to Count 1, the review cover erroneously reflects the charge as a contravention of Section 61(A) of the Road Traffic Act, instead of the correct provision, Section 6(1)(a). Similarly, in Count 4, the review cover incorrectly cites the offence as a contravention of Section 181 of the Criminal Law (Codification and Reform) Act, whereas the correct provision is Section 180(1). Although these may appear to be clerical oversights, they are nonetheless significant. A diligent magistrate must ensure that all documentation accurately reflects the charges and proceedings. Such attention to detail is essential to preserve the integrity of the judicial record and to avoid confusion or misrepresentation of the legal basis for conviction.

5. The most substantive error arises in Count 3, where the offender was convicted of reckless driving after driving a commuter omnibus through a red traffic light. The trial magistrate imposed a blanket prohibition from driving all classes of motor vehicles for a period of two years. Upon inquiry, the magistrate justified this decision by citing Section 54(3)(i) of the Road Traffic Act and the case of *State* v *Gerald Mangwenyama* HH 336/25.

6. This justification is fundamentally flawed. Firstly, there is no Section 54(3)(i) in the Road Traffic Act. Secondly, Section 54 pertains to offences involving driving with a prohibited concentration of alcohol in the blood, which is not applicable in the present matter. The correct provision governing penalties for reckless driving of a commuter omnibus is Section 53(4) of the Road Traffic Act. A careful reading of Section 53(4)(a)(ii) reveals that, in the absence of special circumstances, a first-time offender convicted of reckless driving involving a commuter omnibus must be prohibited from driving such vehicles for life. Additionally, the offender must be prohibited from driving other classes of motor vehicles for a minimum period of six months. The magistrate's imposition of a two-year prohibition across all vehicle classes is therefore legally incorrect. It shows that either the magistrate did not read s 53(4)(a)(ii), or if she did, she did not understand it at all.

7. The magistrate is urged to read the case of *The State* v *Ruzvidzo Freedom* HH 541/25, which provides clear guidance on the application of Section 53(4). That judgment, which I authored, outlines the mandatory nature of the dual prohibition for first-time offenders involving the driving of commuter omnibuses or heavy vehicles. In that case the offender was convicted of reckless driving of a commuter omnibus, just like the offender in the present case.

8. The case of *State* v *Gerald Mangwenyama* HH 336/25, which the magistrate relied upon, is distinguishable. It involved reckless driving of a light motor vehicle, specifically a Honda Fit (Class 4). In that case, the offender was prohibited from driving Class 4 vehicles only, which was contrary to the requirements of Section 53(4)(a)(i). I corrected that error in review and stated, in paragraph 8 of the judgment that if the offender is a first-time convict;

> "Upon conviction, the court must impose a prohibition based on the type of vehicle involved in the offence. The provision provides that if the offence does NOT involve a commuter omnibus or a heavy vehicle, the convicted person must be prohibited from driving for a minimum period of six months. If the offence does involve a commuter omnibus or a heavy vehicle, the convicted person is subject to two prohibitions: Firstly, a prohibition from driving (except a commuter omnibus or heavy vehicle) for at least six months. Secondly, a lifetime prohibition from driving a commuter omnibus or a heavy vehicle." (my underlining in the present matter)

9. I made it clear that the driving prohibition depends on the type of vehicle involved. In a first conviction, if the offence involves a light motor vehicle, the offender must be prohibited from driving all classes of motor vehicles for at least six months. However, if it involves a commuter omnibus or heavy vehicle, the offender faces two prohibitions: a minimum six-month ban from driving other motor vehicles, and a lifetime ban from driving commuter omnibuses or heavy vehicles. At no point did I suggest, imply, or endorse the notion that every conviction for reckless driving warrants a blanket prohibition from driving all classes of motor vehicles for a period of two years. Had the magistrate in the present matter read the *Mangwenyama* case attentively, she would have recognised the distinction in vehicle classification and the corresponding driving prohibition provisions.

10. The magistrate's misapplication of the *Mangwenyama* case and misinterpretation of the Road Traffic Act demonstrates a concerning lack of understanding of both statutory

provisions and relevant case law. This misunderstanding led to an erroneous driving prohibition that is inconsistent with the law.

11. Further compounding the issue, the sentencing judgment contains multiple inaccuracies. It erroneously states that in both Counts 2 and 3, the offender recklessly drove against a red traffic light, which is factually incorrect. It is in count 3 only that the offender drove recklessly through a red robot. In count 2, he failed to comply with lawful instructions given by a police officer. Moreover, there is confusion regarding the applicable penalties for Counts 1 to 3.

12. For Count 1, the magistrate stated that the penalty is a fine not exceeding level six or imprisonment for up to one year, or both. However, the correct penalty for driving a commuter omnibus without a licence is imprisonment for a period not exceeding five years and not less than six months, as provided in the proviso to Section 6(5) of the Road Traffic Act.

13. For Count 2, the magistrate incorrectly stated that the penalty involves imprisonment for a period not exceeding fifteen years and not less than two years. In reality, the offence of failing to comply with lawful instructions given by a police officer attracts a fine, not custodial punishment of such magnitude.

14. For Count 3, the magistrate claimed that the penalty is a fine not exceeding level five or imprisonment not exceeding six months, or both. This is inaccurate. Section 53(2)(a) of the Road Traffic Act prescribes imprisonment not exceeding fifteen years and not less than two years for reckless driving involving a commuter omnibus.

15. Furthermore, the magistrate undertook an inquiry into the degree of negligence after convicting the offender of reckless driving under Section 53(2) of the Road Traffic Act. When I sought clarification, she cited Section 53(3) as the legal basis for this inquiry. However, this reliance is misplaced. Section 53(3) merely provides that a person charged under Section 53(2) may, depending on the facts proved, be found guilty of a lesser offence under Section 51 (driving without due care and attention) or Section 52 (negligent or dangerous driving). It does not, in any way, authorise a post-conviction inquiry into the degree of negligence once a conviction for reckless driving has been entered.

16. In fact, such an inquiry is not only legally unfounded but conceptually incoherent. Reckless driving, by its very nature, denotes a higher threshold of culpability than mere negligence or lack of due care. It implies a wilful or wanton disregard for the safety of persons or property. To then inquire into the "degree of negligence" after a finding of reckless conduct is legally untenable. It suggests a conflation of distinct legal standards and undermines the clarity of the conviction. Once the court has determined that the accused's conduct meets the threshold for reckless driving, any further inquiry into negligence is both redundant and legally irrelevant. There appears to be no provision within the Road Traffic Act that supports or contemplates such a post-conviction exercise.

17. Viewed collectively, the errors outlined above reveal a concerning pattern of inattentiveness and a fundamental misunderstanding of the provisions of the Road Traffic Act on the part of the trial magistrate. Her inability to accurately interpret statutory provisions and appropriately apply relevant case law raises serious doubts about her capacity to effectively discharge her judicial responsibilities in matters involving road traffic offences. Barring the unlikely possibility that she is relying on a different version of the Road Traffic Act, her approach underscores an urgent need for comprehensive retraining, both in the substantive provisions of the Act and in the proper interpretation and application of judicial precedent to the cases before her. Judicial officers bear a solemn responsibility to uphold the law with precision and integrity. Failure to do so undermines public confidence in the justice system and risks miscarriages of justice.

18. In light of the foregoing, I hereby confirm the convictions and sentences in all four counts. However, the driving prohibition penalty imposed in Count 3 must be corrected to align with the provisions of Section 53(4)(a)(ii) of the Road Traffic Act. Having failed to advance any special circumstances, the offender ought to have been prohibited from driving Class 2 motor vehicles for life, and from driving any other class of motor vehicles other than class 2 motor vehicles, for a minimum period of six months. The record of proceedings does not disclose any justification for imposing a prohibition period exceeding the statutory minimum of six months.

19. Accordingly, it is ordered that:

    (i) The convictions and sentences in all four counts are hereby confirmed.

(ii) The driving prohibition of two years for all classes of motor vehicles in Count 3 is hereby set aside and substituted with the following:

(a) The offender is prohibited from driving Class 2 vehicles (commuter omnibuses and heavy vehicles) for his lifetime.

(b) The offender is prohibited from driving any other class of motor vehicles for a period of six months.

20. The offender must be recalled from custody and formally notified of the amendment to his driving prohibition. Furthermore, this review judgment should be brought to the attention of the Chief Magistrate to facilitate the necessary training of the trial magistrate, as recommended herein.

MUREMBA J: …… ……

MAWADZE DJP Agrees: …….